

Opinion of the Court

American Co., 299 U.S. 248, 254 (1936). As we have explained, “[e]specially in cases of extraordinary public moment, [a plaintiff] may be required to submit to delay not immoderate in extent and not oppressive in its consequences if the public welfare or convenience will thereby be promoted.” *Id.*, at 256. Although we have rejected the argument that the potential burdens on the President violate separation-of-powers principles, those burdens are appropriate matters for the District Court to evaluate in its management of the case. The high respect that is owed to the office of the Chief Executive, though not justifying a rule of categorical immunity, is a matter that should inform the conduct of the entire proceeding, including the timing and scope of discovery.⁴¹

Nevertheless, we are persuaded that it was an abuse of discretion for the District Court to defer the trial until after the President leaves office. Such a lengthy and categorical stay takes no account whatever of the respondent’s interest in bringing the case to trial. The complaint was filed within the statutory limitations period—albeit near the end of that period—and delaying trial would increase the danger of

⁴¹ Although these claims are in fact analytically distinct, the District Court does not appear to have drawn that distinction. Rather than basing its decision on particular factual findings that might have buttressed an exercise of discretion, the District Court instead suggested that a discretionary stay was supported by the *legal conclusion* that such a stay was required by *Fitzgerald*. See 869 F. Supp., at 699. We therefore reject petitioner’s argument that we lack jurisdiction over respondent’s cross-appeal from the District Court’s alternative holding that its decision was “also permitted,” *inter alia*, “under the equity powers of the Court.” *Ibid.* The Court of Appeals correctly found that pendent appellate jurisdiction over this issue was proper. See 72 F. 3d, at 1357, n. 4. The District Court’s legal ruling that the President was protected by a temporary immunity from trial—but not discovery—was “inextricably intertwined,” *Swint v. Chambers County Comm’n*, 514 U.S. 35, 51 (1995), with its suggestion that a discretionary stay having the same effect might be proper; indeed, “review of the [latter] decision [is] necessary to ensure meaningful review of the [former],” *ibid.*